

25STCP04049 25STCP04049

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-08-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C834%2C08%2F18%2F2026

Source SHA-256: 827f5df952da525c2dcc3b84b4d16986b91b768d4edc9b6f1e7a69945027c426

Case Number: 25STCP04049 Hearing Date: August 18, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

¿

JERRY CALLOWAY JR.

Petitioner(s),

vs.

STATE

HEARINGS DIVISION DEPARTMENT OF SOCIAL SERVICES,

Respondent(s).

Case No.:

25STCP04049

Hearing Date:

August 18, 2026

[TENTATIVE] RULING

ON PETITION FOR WRIT OF MANDATE

Petitioner Jerry Calloway ("Petitioner") petitions for a writ of mandate against respondent Department of Rehabilitation ("Respondent") directing it to set aside its decisions and conduct proceedings in compliance with the law.

The petition for writ of mandate is denied.

I.

Background

1.

Factual Background

On July 23, 2019, Petitioner applied for Respondent's services. (AR 5, 26-27.) On August 14, 2019, Respondent determined Petitioner was eligible for rehabilitation services. (AR 5, 26-27.)

On December 4, 2024, Respondent issued Petitioner a Closure Report. (AR 47-51.) Respondent determined Petitioner "[chose] not to participate, or continue to participate, in [vocational rehabilitation] services, for reasons including but not limited to, an assessment for determining eligibility and priority for services." (AR 47.) Specifically, Respondent asserted that Petitioner was disrespectful to Respondent staff and exhibited maladaptive behaviors. (AR 48.) Respondent further contended that Petitioner lost Respondent's equipment, caused an incident resulting in a police response, was discharged from employment for failure to follow his assigned work schedule, vandalized display cases at a pawn shop, was discharged from employment as a security officer, intimidated Respondent's staff in Long Beach, and threatened Respondent's staff in Compton. (AR 48-49.)

On December 4, 2024, Petitioner filed a request for hearing. (AR 4, 23.) Department of Social Services Administrative Law Judge Tiffany Jensen ("ALJ") heard Petitioner's appeal on March 17, 2025. (AR 80.) The ALJ issued her final decision on April 7, 2025. (AR 2-21.) The same day, Petitioner filed a request for rehearing on April 7, 2025. (AR 78-79.)

2.

Procedural History

On October 17, 2025, Petitioner filed his petition. On November 26, 2025, Petitioner filed his first amended petition. On December 23, 2025, Petitioner filed his second amended petition. A proof of service filed January 16, 2026 shows Petitioner served the second amended petition on Respondent by personal service on January 6, 2026.

On February 2, 2026, Respondent filed a general denial and affirmative defenses. On February 11, 2026, Petitioner filed a "Rebuttal to Defendant's Response" responding to Respondent's affirmative defenses.

On March 19, 2026, the Court ordered Petitioner to file and serve his opening brief no later than April 16, 2026. On May 28, 2026, Respondent filed its opposition. On June 23, 2026, Respondent filed a notice of lodging for the administrative record.

On July 7, 2026, the Court heard the matter. Petitioner had not filed an opening brief at any point in advance of the hearing. Rather than deny the writ on that basis, on its own motion, the Court continued the hearing to August 18, 2026 to allow Petitioner another opportunity to file an opening brief. Petitioner represented that he sent a written response to Respondent in advance of the hearing. The Court ordered Petitioner to file, by July 21, 2026, the opening brief and/or reply he previously sent to Respondent. The Court ordered Respondent to file a copy of the documents it received by the same date, so that all parties could be assured that the Court was considering only what had been previously served (and not filed).

On July 8, 2026, Petitioner filed an opening brief and a notice of rebuttal ("NOR") addressing Respondent's affirmative defenses.^[1] On July 15, 2026, Respondent filed copies of the same documents.

II.

Standard of Review

Code of Civil Procedure (“CCP”) section 1094.5 is the administrative mandamus provision that structures the procedure for judicial review of adjudicatory decisions rendered by administrative agencies. (*Topanga Ass’n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-15) [“*Topanga*”].) Section 1094.5 does not specify which cases are subject to independent review, leaving that issue to the courts. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 811 [“*Fukuda*”].) In cases reviewing decisions that affect a vested, fundamental right, the trial court exercises independent judgment on the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143 [“*Bixby*”]; see CCP § 1094.5(c).) In reviewing decisions denying public assistance, the court exercises independent judgment (*Norasingh v. Lightbourne* (2014) 229 Cal.App.4th 740, 752), and likewise when reviewing decisions terminating benefits (*Frink v. Prod* (1982) 31 Cal.3d 166, 171).

“In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (*Fukuda*, supra, 20 Cal.4th at 817.) Unless it can be demonstrated by petitioner that the agency’s actions are not grounded upon any reasonable basis in law or any substantial basis in fact, the courts should not interfere with the agency’s discretion or substitute their wisdom for that of the agency. (*Bixby*, supra, 4 Cal.3d at 150-151; *Bank of America v. State Water Resources Control Board* (1974) 42 Cal.App.3d 198, 208.)

Where the issue is whether a fair administrative hearing was conducted, a petitioner is entitled to an independent judicial determination of the issue. (*Sinaiko v. Superior Court* (2004) 122 Cal.App.4th 1133, 1141; *Pomona Valley Hospital Medical Center v. Superior Court* (1997) 55 Cal.App.4th 93, 101.) Therefore, the court must independently review the fairness of the administrative proceedings as a legal issue. (*Rosenblit v. Superior Court*, (1991) 231 Cal.App.3d 1434, 1438.)

The agency’s decision must be based on a preponderance of the evidence presented at the hearing. (*Board of Medical Quality Assurance v. Superior Court*, (1977) 73 Cal.App.3d 860, 862.) The hearing officer is only required to issue findings that give enough explanation so that parties may determine whether, and upon what basis, to

review the decision. (Topanga, supra, 11 Cal.3d at 514-15.) Implicit in CCP section 1094.5 is a requirement that the agency set forth findings to bridge the analytic gap between the raw evidence and ultimate decision or order. (Id. at 515.)

An agency is presumed to have regularly performed its official duties (Evid. Code § 664), and the petitioner therefore has the burden of proof on mandamus. (Steele v. Los Angeles County Civil Service Commission (1958) 166 Cal.App.2d 129, 137.) “[T]he burden of proof falls upon the party attacking the administrative decision to demonstrate wherein the proceedings were unfair, in excess of jurisdiction or showed prejudicial abuse of discretion.” (Alford v. Pierno, (1972) 27 Cal.App.3d 682, 691 [“Alford”].)

III.

Analysis

Petitioner seeks a writ of administrative mandamus directing Respondent to set aside its decision to close his case.

In opposition, Respondent argues the petition is untimely.

Under the Welfare and Institutions Code (“WIC”), any applicant for or client of Respondent may appeal any action by Respondent related to his or her application or receipt of services. (WIC § 19704(a).) If the appellant requests review within one year of the action challenged, the appellant is entitled to administrative review and redetermination by one or more members of Respondent’s supervisory staff as well as a fair hearing before an impartial hearing officer. (WIC § 19704(a).) After the hearing, the appellant may file a petition for administrative mandamus with the superior court. (WIC § 19709(a).) The appellant must file within six months after receiving notice of the hearing officer’s final decision. (WIC § 19709(a).)

Petitioner was a client of Respondent. (AR 5, 26-27.) On December 4, 2024, Respondent issued Petitioner a Closure Report. (AR 47-51.) The same day, Petitioner filed a request for hearing. (AR 4, 23.) The ALJ heard Petitioner’s appeal on March 17, 2025. (AR

80.) The ALJ issued her final decision on April 7, 2025. (AR 2-21.) While the record does not specifically show the method or date when Petitioner received notice of the final decision, Petitioner filed a request for rehearing on April 7, 2025, reflecting that he had notice of the ALJ's final decision as of that day. (AR 78-79.)

Because Petitioner received notice of the ALJ's final decision on April 7, 2025 (see AR 78-79), the last day to file his petition was six months later, or October 7, 2025. (WIC § 19709(a).) Petitioner filed his Petition on October 17, 2025. Therefore, the petition is untimely.

In his NOR, Petitioner argues:

(1) the petition was timely filed; (2) the loss of the audio recording of the administrative hearing prevented him from fully understanding the basis for the final decision until recently, tolling the limitations period; (3) Petitioner acted promptly and diligently upon discovering procedural deficiencies; and (4) Petitioner acted properly and there is no evidence of waiver, estoppel or inequitable behavior. (NOR at 7.)

As set forth above, the petition is untimely. Petitioner received the adverse administrative decision no later than April 7, 2025. (AR 78-79.) Section 19709 requires any petition for judicial review to be filed within six months of receipt of that decision, and Petitioner's October 17, 2025 filing exceeded that deadline.

Petitioner's tolling argument is also unpersuasive. Petitioner knew Respondent's final decision was adverse by April 7, 2025. (AR 78-79.) Even assuming the audio recording of the hearing was lost, Petitioner does not explain why his personal participation at the hearing was insufficient for him to identify any alleged procedural irregularities or otherwise understand the bases for the adverse decision. Nothing in the record suggests that the absence of the audio prevented him from recognizing the grounds for his challenge.

Nor has Petitioner demonstrated that equitable tolling should apply here. The requirements for equitable tolling are: (1) timely notice; (2) lack of prejudice to defendant; and (3) reasonable and good faith conduct by the plaintiff. (*Addison v. State of California* (1978) 21 Cal.3d 313, 319.) Petitioner offers only conclusory statements that

these elements are satisfied. The record does not support those conclusions. The only potential basis for “timely notice” is Petitioner’s rehearing request on April 7, 2025. (AR 78-79.) If Petitioner relies on that request, he does not explain why his subsequent six-month lapse in filing was reasonable or made in good faith. Conversely, if Petitioner contends that he did not discover the grounds for his petition until later (see Reply at p. 7), then he cannot show timely notice to Respondent.

Petitioner’s argument is supported by the bare assertion that he gave timely notice, Respondent will not be prejudiced, and he acted reasonably in good faith. The record does not support this contention. The rehearing request on April 7, 2025 (AR 78-79) is the only basis for potential timely notice to defendant. However, if Petitioner relies on this request, there is no explanation for how his failure to timely file was reasonable. Alternatively, if Petitioner contends that the grounds for the petition stem from information obtained later, then he cannot show timely notice to Respondent. Either way, the elements of equitable tolling are not met.

Petitioner cites Saint Francis Memorial Hospital v. State Dept. of Public Health, (2020) 8 Cal.5th 621; Bowman v. Superior Court, (1989) 49 Cal.3d 120; Lantzy v. Centex Homes, (2003) 31 Cal.4th 363 (“Lantzy”); McDonald v. Antelope Valley Community College Dist., (1996) 45 Cal.App.4th 88 (“McDonald”); and Shulman v. Group W Productions, Inc., (1998) 18 Cal.4th 200 (“Shulman”). (NOR at 15.)

Saint Francis Memorial Hospital v. State Dept. of Public Health, (2020) 9 Cal.5th 710 (“St. Francis”), [2] holds that equitable tolling may be available in administrative mandamus actions unless a statute’s language, structure, or legislative history demonstrates a legislative intent to prohibit tolling. (Id. at 716.) This establishes the possibility of equitable tolling in administrative mandamus matters. But as Saint Francis makes clear, the mere availability of equitable tolling does not mean it applies in every case. A petitioner must still demonstrate that tolling is warranted on the specific facts of the case. (Id. at 724 [“But ‘may’ here means possibility, and not just permission: That equitable tolling is available under [the relevant section] doesn’t mean it will apply in every — or even most — cases.”].) Petitioner has not done so here.

Petitioner cites *Bowman v. Superior Court*, (1989) 49

Cal.3d 120, but the Court is unable to identify Petitioner's likely intended case. Petitioner cites to this case for the proposition that "[e]quitable tolling can apply when a petitioner is reasonably misled or prevented from filing due to unclear administrative communications." (NOR at 15.) Even assuming, for the sake of argument, that the intended *Bowman* case stands for that principle, it does not assist Petitioner. The final administrative decision expressly stated the correct six-month deadline for seeking judicial review. (AR 21.) Petitioner identifies no contradictory communications from DOR.

McDonald involved tolling where a claimant pursued an optional administrative remedy. (*McDonald*, supra, 45 Cal.4th at 114.) That situation is inapplicable here. Judicial review under section 19709 is the exclusive remedy. (WIC § 19709(a).) The final decision explicitly directed Petitioner to seek judicial review within six months and did not identify any further administrative remedy. Petitioner nonetheless pursued administrative review where none remained, which does not justify tolling.

Shulman, while correctly cited, does not discuss equitable tolling or statutes of limitation. (*Shulman*, supra, 18 Cal.4th 200.) Even accepting Petitioner's interpretation for the sake of argument, he does not show that circumstances beyond his control prevented timely filing. Petitioner was present at the hearing and received the adverse decision on April 7, 2025.

Finally, *Lantzy* is cited only for the legal standard for equitable tolling, which is more accurately spelled out in *Saint Francis*. (*Saint Francis*, supra, 9 Cal.5th at 724.) As explained above, Petitioner has not satisfied those elements.

Accordingly, the Petition is untimely and equitable tolling does not apply.

IV.

Conclusion

The petition is untimely. The petition for administrative mandamus is DENIED. Pursuant to Local Rule 3.231(n), respondent Department of Rehabilitation shall prepare, serve, and

ultimately file a proposed judgment.

Date: August 18, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

.

Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

.

If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

.

Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

.

If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Petitioner's NOR addresses Respondent's pleadings rather than Respondent's opposition. Nonetheless, Petitioner timely filed the NOR under the reply deadline set by the Court, and Petitioner filed no other reply. The Court exercises its discretion to consider the NOR.

[2]

Petitioner cites a case with this title at 8 Cal.5th 621, which appears to be a pin cite to *People v. Beck and Cruz* (2019) 8 Cal.5th 548. The case found at the Court's citation addresses the issues Petitioner discusses.